

		The petition to confirm the arbitration award meets the statutory requirements and thus “the court shall confirm the award as made.” (Code Civ. Proc. § 1286.) Accordingly, the petition is granted. Petitioner shall give notice of this ruling. Petitioner is also ordered to file and serve a proposed judgment consistent with the confirmed arbitration award.
4	168 ET LLC vs. El Toro Shopping Center II LLC	TENTATIVE RULING: Plaintiff 168 ET LLC’s Motion for Relief from Dismissal of Defendant Michael H. Mogel [sic], for Leave to Amend Complaint, and to Reinstate Dismissed Defendants PMA Advisors and Michael H. Mogel [sic] is DENIED. A. Statement of Law – Set Aside Dismissals “The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein¹, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months², after the judgment, dismissal, order, or proceeding was taken.” (Code Civ. Proc., § 473, subd. (b).) Section 473 is the proper vehicle for setting aside a dismissal. (<i>Gee v. Greyhound Lines, Inc.</i> (2016) 6 Cal.App.5th 477, 486; <i>Chase v. Superior Court of Los Angeles County</i> (1962) 210 Cal.App.2d 872, 875 [a dismissal “may be directly attacked under section 473 of the Code of Civil Procedure by a party to the action on the grounds of mistake, inadvertence, surprise, or excusable neglect or that it is void”]; see <i>J.A.T. Entertainment, Inc. v. Reed</i> (1998) 62 Cal.App.4th 1485, 1492-1493 [vacate dismissal without prejudice under both discretionary and mandatory provisions of section 473]; see <i>Vaccaro v. Kaiman</i> (1998) 63 Cal.App.4th 761, 770 [vacate dismissal with prejudice where dismissal was result of attorney fault].) The court has wide discretion to grant relief under the statute authorizing relief from a proceeding taken against a party through his

¹ Plaintiff seeks to restore Defendants Michael H. Mogel and PMA Advisors as defendants to the action, and they seek leave to file a First Amended Complaint, which would name these two dismissed defendants.

² Mugel was dismissed, with prejudice, on April 25, 2023. [ROA # 17] PMA was dismissed, without prejudice, on December 2, 2025. [ROA # 68] The Motion was filed March 23, 2026, meaning the Motion is untimely as to Mugel, but timely as to PMA.